

RENFROE v FCA US, LLC

24CV47466

PLAINTIFF'S MOTION FOR ATTORNEY'S FEES, COSTS, and EXPENSES

This case involves a dispute over a vehicle warranty dispute. Now before the Court is Plaintiff Joshua Renfroe's motion for attorney's fees.

The Motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

Accordingly, the motion is **DENIED**, Without Prejudice to refile.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

10:00 a.m. Calendar

MATTER OF SILVEIRA

21PR8357

OBJECTORS' MOTION FOR SUMMARY JUDGMENT

This matter includes four consolidated probate petitions and one related civil complaint and a convoluted factual and procedural history.

Now before the Court is a Motion for Summary Judgment brought by “Objectors” Francille Elaine Peters, Individually, as Beneficiary, as Executor, and as Co-Trustee; and David J. Silveira, Jr., Individually and as Personal Representative (hereinafter “Objectors.”) Rodd Peters has filed a notice of joinder in the Motion. For ease of reference, Manuel Silveira (“Manuel”) and Audrey Petricevich (“Audrey”) are referred to collectively as “Opposing Parties.”

Both parties objected to various pieces of evidence brought by the other parties. However, none of the objected-to evidence was material to the disposition of the motion, and accordingly the Court does not rule on any of the evidentiary objections to evidence. (Code Civ. Proc. §437(q).)

I. Background

The parties recite numerous facts which are largely irrelevant to the motion at hand. Accordingly, the Court will set forth only those facts material to the Objector’s motion.

Carolyn Silveira (“Carolyn”) ¹ and David J. Silveira Sr. (“David, Sr.”) were a married couple with five children: Audrey Petricevich (“Audrey”), Manuel Silveira (“Manuel”), Francille Elaine Peters (“Francille”), David Silveira Jr. (“David Jr. ”) and “Dominick Silveira (“Dominick”).

¹ Due to the common surnames, first names will be used for all parties. No disrespect is intended.